

veterinary surgery and medicine, but are not amenable to the disciplinary powers conferred on the Royal College of Veterinary Surgeons over persons on the Register of Veterinary Surgeons :

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Construction
and short
title.
44 & 45 Vict.
c. 62.

1. This Act shall be supplemental to, and shall be read with, the Veterinary Surgeons Act, 1881 (herein-after called the principal Act), and may be cited as the Veterinary Surgeons Amendment Act, 1900.

Extension or
disciplinary
powers of
Royal College
of Veterinary
Surgeons.

2. From and after the first day of January one thousand nine hundred and one, all persons now holding the veterinary certificate of the Highland and Agricultural Society of Scotland granted prior to the passing of the principal Act shall be subject to the jurisdiction of the Royal College of Veterinary Surgeons in like manner as members of the Royal College of Veterinary Surgeons, and shall be liable to be deprived by the Council of the said College of the rights of styling themselves members of the veterinary profession, or recovering fees in respect of the practice of the veterinary art, subject to and under the conditions and with the restrictions specified in section six of the principal Act.

Penalties.

3. Any person who may be deprived of such rights under the provisions of section two of this Act shall be subject to the penalties mentioned in section seventeen of the principal Act if he takes or uses the title of veterinary surgeon or veterinary practitioner, or any name, title, addition, or description, stating that he is a veterinary surgeon, or a practitioner of veterinary surgery or of any branch thereof, or is specially qualified to practise the same, and he shall not be entitled to recover in any court any fee or charge for performing any veterinary operation, or for giving any veterinary attendance or advice, or for acting in any manner as a veterinary surgeon or veterinary practitioner, or for practising in any case veterinary surgery or any branch thereof, anything in such section to the contrary notwithstanding.

CHAPTER 25.

An Act to amend the Charitable Loan Societies (Ireland) Act, 1843. [30th July 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Cases in which
charitable
loans are not
to be invalid

1. Any promissory note current or unpaid on the first day of March one thousand eight hundred and ninety-nine, and purporting to have been made, in pursuance of the provisions of the Charitable

Loan Societies (Ireland) Act, 1843 (in this Act referred to as the principal Act), to the treasurer or secretary of any loan society, shall not be invalid or incapable of being enforced in any court, or liable to stamp duty, by reason of any of the matters following:—

or liable to
stamp duty.
6 & 7 Vict.
c. 91.

- (a.) The non-residence of the borrower, at the time of the making of the note, in the district within which the operations of such society ought to have been conducted :
- (b.) The said note having been given as a renewal, in whole or in part, of, or in substitution for, any promissory note theretofore made by the borrower, or any person on his behalf, to the treasurer or secretary of such society :
- (c.) A previous loan made by the said society to the borrower, or any person on his behalf or for his use, being unpaid in whole or in part at the time of the making of the loan in respect of which the said note was made :
- (d.) The borrower having been at the time of the making of the loan surety for the repayment of any other loan made by the said society :
- (e.) The acceptance by the said society, as surety for the repayment of any loan, of any person who was at the time of the making of the said loan a borrower from the said society ;
- (f.) The loan having been in the first instance for a sum exceeding ten pounds in contravention of section twenty-four of the principal Act ; or
- (g.) Interest or fines in excess of the amount authorised by the principal Act having been charged against, or paid by, the borrower on account of the indebtedness in respect of which the said note was made.

Provided that every such note shall, subject to the provisions of this Act, only stand as a security for, and there shall only be recoverable thereon, such sum as would have been due thereon had such excess not been charged, and had due credit been given as against such sum for all moneys paid by, or on behalf of, the persons liable thereon, in discharge in whole or in part of such excess.

2.—(1.) The treasurer of a loan society shall prepare and provide an account setting forth the particulars of the amount sought to be recovered in respect of any note under the principal Act, and that account shall be issued together with the summons for such recovery.

Provisions with
respect to
taking account.

(2.) In ascertaining the amount due in respect of any such note an account shall not be carried back for a period exceeding six years from the date of the note, and where the account is so carried back, the loan secured by the note current at the commencement of such period, or if no note was then current, by the note which last before that date became due shall be deemed and taken to be the first loan made by the said society to the borrower.

(3.) The court may, if it thinks fit, order that the amount found due on such account shall be paid by such instalments extending over such period (not exceeding three years) as the court may think fit.

(4.) In taking such account there shall be no periodical rests and no sums shall be allowed in respect of compound interest.

(5.) If, on taking such account, any balance is found due by the loan society, judgment for the amount of such balance shall be given in favour of the defendant.

As to forms
and costs.
14 & 15 Vict.
c. 93.

3.—(1.) In any proceedings under the principal Act the forms in the schedules to the Petty Sessions (Ireland) Act, 1851, shall, wherever applicable, be used instead of the forms in the schedules to the principal Act, and costs, which shall be in the discretion of the court, may be awarded to the amount mentioned in section twenty-two of the said Act of 1851.

(2.) Out of any sum awarded in respect of costs under the foregoing enactment, the court may award such sum as it thinks fit, as remuneration for taking any account under the principal Act as amended by this Act, to be paid to such person as the court may appoint to take the account.

Power for loan
societies to
compromise
debts.

4. A loan society acting under the principal Act may, if they think fit, accept any composition on any security, real or personal, for any debt, and may allow any time for payment for any debt, and may compromise, compound, abandon, submit to arbitration, or otherwise settle, any debt, account, claim, or thing whatever, arising under the principal Act or this Act, and for any of those purposes may enter into, give, execute, and do such agreements, instruments of composition or arrangement, releases, and other things, as to them seem expedient without being responsible for any loss occasioned by any act or thing so done by them in good faith.

Part of
6 & 7 Vict.
c. 91, s. 58, not
to apply to
proceedings
under this Act.

5. So much of section fifty-eight of the principal Act as enables a Justice of the Peace who may be a trustee or other unpaid officer or member of a loan society to adjudicate in the matters therein mentioned shall not apply to any proceedings instituted under or by virtue of this Act.

Definition.

6. The expression "fines" in this Act shall include any sums charged for stamps, fees, or costs in respect of summonses under the principal Act which were not in fact issued, or documents purporting to be such summonses.

Short title
and mode of
citation.

7. This Act may be cited as the Charitable Loan Societies (Ireland) Act, 1900, and may be cited with the principal Act.